5003599 Pages: 1 of 15
01/03/2025 10:14 AM R Fee:$83.00
Carly Koppes, Clerk and Recorder, Weld County , CO

WHEN RECORDED MAIL TO:

Agave Ventures LLC
7036 Via Agave
San Diego, CA 92130

SPACE ABOVE THIS LINE FOR RECORDER'S USE

EASEMENT AGREEMENT

THIS EASEMENT AGREEMENT ("Agreement") is made as of the 26th day of December, 2024 ("Effective Date") by and between **AGAVE VENTURES LLC**, a Wyoming limited liability company ("Grantor") and **AGAVE VENTURES GROUP LLC,** a California limited liability company ("Grantee"). Grantor and Grantee are at times collectively referred to hereinafter as the "Parties" or individually as a "Party".

RECITALS:

WHEREAS, Grantor is the owner of that certain real property located at or about 1847 61st Ave, Greeley, CO 80634, APN: R4249606 ("Property"), which Property is more particularly described on Exhibit A attached hereto and made a part hereof.

NOW, THEREFORE, for and in consideration of the mutual covenants and agreements herein contained, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and intending to be legally bound, Grantor and Grantee hereby agree and covenant to and with each other the following:

1. **Grant of Easement.** Grantor grants and conveys unto Grantee, its successors and assigns, for the Term (defined herein), an exclusive easement in, to, under and over portions of the Property (the "**Exclusive Easement Area**"), as such Exclusive Easement Area is more particularly shown on Exhibit B attached hereto and described by metes and bounds in Exhibit C attached hereto. Grantor also grants to Grantee, its successors and assigns, as part of this Easement, a non-exclusive right-of-way for ingress and egress, seven (7) days per week, twenty-four (24) hours per day along any paved roadway upon the Property, as is more particularly shown on Exhibit D attached hereto (the "**Access Easement**"). Grantor further grants to Grantee, its successors and assigns, as part of this Easement, a non-exclusive utility easement in, to, under and over portions of the Property as is more particularly described by metes and bounds on Exhibit E attached hereto, together with the right to install, replace and maintain underground utility wires, fiber, cables, conduits and pipes (the "**Utility Easement**") (hereinafter the term "**Easement**" shall be deemed to include the Exclusive Easement Area, the Access Easement, and the Utility Easement, unless stated to the contrary). In the event a public utility is unable or unwilling to use the above-described Access Easement, Grantor hereby agrees to grant an additional right-of-way, in a form satisfactory to Grantee, to Grantee or at Grantee's request, directly to a public utility, at no cost and in a location acceptable to Grantee (the "**Additional Utility Easement**"). For any such Additional Utility Easement to be effective, such easement shall be recorded in the public records of the County in which such Easement is located.

2. **Permitted Use.** The Easement shall be used for (i) constructing, installing, maintaining, repairing and operating, inspecting and removing communications facilities, including but not limited to conduit, fiber optic lines, splice enclosures, innerducts, conduits, raceways, cabinets, pedestals, vaults, buildings, equipment, bridges, fences, gates, generators and any and all facilities related to any of the foregoing (which shall include, but not be limited to, any utilities that may be reasonably required to operate the facilities) and all equipment Grantee reasonably finds necessary or convenient in connection with operation of local network, network equipment or central office; and (ii) uses incidental thereto, including without limitation, testing of any kind, and equipment to accommodate new technologies or future innovations for Grantee's use and the use of its lessees, licensees, invitees, and/or sub-easement holders (the "**Permitted Use**"). It is the intent of the parties that Grantee's communications facilities shall not constitute a fixture. Grantor acknowledges that Grantor has no right to object to or approve any improvements to be constructed by Grantee on the Easement which are consistent with the Permitted Use. If requested by Grantee, Grantor will execute, at Grantee's sole cost and expense, all documents required by any governmental authority in connection with any development of, or construction on, the Easement, including documents necessary to petition the appropriate public bodies for certificates, permits, licenses and other approvals deemed necessary by Grantee in Grantee's absolute discretion to utilize the Easement for the Permitted Use. Grantor agrees to be named applicant if requested by Grantee. In furtherance of the foregoing, Grantor hereby appoints Grantee as Grantor's attorney-in-fact to execute all land use applications, permits, licenses and other approvals on Grantor's behalf. Grantor shall be entitled to no further consideration with respect to any of the foregoing matters. Grantor shall take no action that would adversely affect the status of the Easement.

3. **Term.** This Agreement and the Easement shall commence on Effective Date and extend until terminated in accordance with the terms herein ("Term").

4. **Termination.** In the event Grantee and its Customers (defined herein) cease all use of all portions of the Easement for a period of more than three (3) consecutive years (for reasons other than casualty or force majeure) subsequent to the expiration of the Current Agreements, the Easement shall be deemed abandoned and this Agreement shall be terminated. Limited or partial use of the Easement by Grantee or any Customers shall not be deemed a surrender or abandonment of the Easement or any unused portion thereof, nor prevent Grantee from benefiting from the full use and enjoyment of the entirety of the Easement. Grantee may terminate this Agreement upon written notice to Grantor. This Agreement may not be terminated by Grantor. Upon termination, Grantee and Grantor shall cooperate in the execution and recordation of any document reasonably required to evidence such termination.

5. **Easement Consideration.** Grantor hereby acknowledges the receipt, in advance, of all consideration due hereunder. Accordingly, no additional consideration, compensation, fees, commissions, reimbursements, contributions, purchase monies or other payments shall be due during the Term of this Easement in connection with any of the Grantor's obligations under this Easement or under the Current Agreements.

6. **Private Easement.** Nothing in this Easement shall be deemed to be a dedication of any area for public use. All rights, easements and interests herein created are private and do not constitute a grant for public use or benefit.

7. **Taxes.** Grantor shall pay all real estate taxes on Grantor's Property; provided Grantee or its Customers (defined herein) as applicable, agree to reimburse Grantor for any documented increase in real estate taxes levied against Grantor's Property that are directly attributable to the presence of

Grantee's improvements within the Easement. Grantor agrees to provide Grantee with any documentation evidencing the increase and how such increase is attributable to Grantee's use. Grantee reserves the right to challenge any such assessment, and Grantor agrees to cooperate with Grantee in connection with any such challenge.

8. **Relocation of Utility Easement.** Commencing on or after July 15, 2031, if Grantor, in its reasonable judgment, desires to redevelop the Property which requires the relocation, partly or in their entirety, of Grantee's improvements and utilities within the Utility Easement (the "**Relocation Project**"), then Grantor shall have the one time right to cause Grantee to temporarily or permanently relocate only those improvements and utilities as may be necessary to accommodate the Relocation Project, subject to the terms and conditions set forth in this Section 8; provided, however, Grantor shall use commercially reasonable efforts to accommodate Grantee's continued uninterrupted use of communications equipment and utilities throughout the Relocation Project. If the Relocation Project requires Grantee to permanently relocate any improvements and utilities in accordance with this Section 8 , Grantor shall have the right to require Grantee to relocate them upon the following terms and conditions: (i) Grantor shall deliver to Grantee a notice of its Relocation Project at least six (6) months prior to the start of redevelopment construction ("Relocation Project Notice"); (ii) Grantor, in the Relocation Project Notice shall identify a suitable alternate location on the Property for Grantee's improvements and utilities and/or Utility Easement (an "Alternate Location"); (iii) Grantee consents to the Alternate Location, such consent shall not be unreasonably withheld, conditioned or delayed; (iv) the relocation of the Grantee's improvements and utilities, will be performed exclusively by Grantee within a commercially reasonable timeframe for such a project; (v) Grantor pays for all of Grantee's cost of the relocation including but not limited to the direct cost of the physical relocation work; and (vi) Grantor and Grantee will promptly execute an amendment to the Agreement that memorializes the Alternate Location for the Utility Easement.

9. **Interference.** Grantor and its successors and assigns shall not install or permit to be installed any structure or equipment which causes measurable interference to the equipment of Grantee or its Customers (defined herein), or otherwise permit any portion of the Property to be used in a manner which materially interferes with the operations of Grantee or its Customers (defined herein). Grantor and Grantee acknowledge that there will not be an adequate remedy at law for non-compliance with the provisions of this paragraph and therefore, Grantee shall have the right to specifically enforce the provisions herein in a court of competent jurisdiction.

10. **Environmental Covenants and Indemnity.** Neither Grantor nor Grantee will introduce or use any substance, chemical or waste that is identified as hazardous, toxic or dangerous in any applicable federal, state or local law or regulation ("Hazardous Materials") on, under or about the Property or the Easement in violation of any applicable law or regulation. Grantor and Grantee shall each indemnify, defend and hold the other Party harmless from and against any and all losses, costs, claims, enforcement actions and expenses, including reasonable attorneys' fees, arising out of the presence of Hazardous Materials upon or affecting the Property or the Easement and caused by the indemnifying Party. The foregoing indemnity shall survive any termination of this Agreement.

11. **Limitation on Damages.** In no event shall either party be liable to the other for consequential, indirect, speculative or punitive damages in connection with or arising from this Easement.

12. **General Indemnity.** Grantor and Grantee shall each indemnify, defend and hold the other Party harmless from and against any and all losses, costs, claims and expenses, including reasonable attorneys' fees, arising out of (i) the breach of any representation, warranty or covenant of such

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indemnifying Party set forth herein, or (ii) the use and/or occupancy of the Property or the Easement by the indemnifying Party, except to the extent arising from the negligence or intentional misconduct of the indemnified Party. The foregoing indemnity shall survive any termination of this Agreement.

13. **Transfer of the Property; Assignment.** The provisions and covenants contained in this Agreement shall run with the land and shall bind and inure to the benefit of the Parties and their respective successors and assigns. Should Grantor sell or otherwise convey all or any part of the Property, such sale or conveyance shall be under and subject to the terms contained in this Agreement and Grantee's rights hereunder, and the Easement shall continue in full force and effect and shall be binding on any successor. Notwithstanding the foregoing, this Agreement and the Easement are for the benefit of Grantee and its successors and assigns, rather than for the benefit of any other tract of land, and may be assigned freely, in whole or in part, by Grantee and its successors and assigns.

14. **Estoppel Certificate.** Each Party shall, within ten (10) days after request by the other Party, execute and deliver to the requesting Party a statement certifying (i) that this Agreement is unmodified and in full force and effect (or, if there have been modifications, stating the modifications and that the modified Agreement is in full force and effect); (ii) whether, to the responding Party's knowledge, either Party is in default in performance of any of its obligations under this Agreement, and, if so, specifying each default; and (iii) any other information reasonably requested concerning this Agreement or the Property.

15. **Assignment of Lease.** Grantor and Grantee hereby recognize and agree that a portion of the Property is subject to a certain Lease Agreement between Grantor's predecessor-in-interest, Arvid Hvidsten ("Landlord") and ALLO Greeley, LLC, or its successor in interest, ("Tenant"), dated July 15, 2021 (the "Original Lease"), as amended by that certain First Amendment to Lease Agreement dated August 19, 2024 between Grantor and Tenant (the "First Amendment") (the Original Lease and the First Amendment are collectively referred to as the "**Current Agreements**"). Grantor transfers and assigns to Grantee, as of the Effective Date, any and all of Grantor's beneficial rights, title and interest in, to and under the Current Agreements, including but not limited to (i) the right to receive any and all rents and other monies due thereunder and (ii) the right to modify, extend, expand and/or terminate the Current Agreements. Grantor is not assigning and shall continue to comply with all of Grantor's obligations as lessor under the Current Agreements During the term of the Current Agreements, maintenance of the Easement is the responsibility of any tenants under the Current Agreements, and Grantee shall not be responsible for any default thereof by any tenants under the Current Agreements nor obligated to cure or seek remedy for such default.

16. **Quiet Enjoyment.** Subject to the remaining term of the Current Agreements and Term as defined in Section 3 above, Grantor shall provide to Grantee the quiet enjoyment and use of the Easement. Grantee shall have the exclusive, unrestricted right to lease, sublease, license, transfer, assign or encumber, in whole or in part, or grant the use of the Easement and/or Grantee's rights under this Agreement to any parties, including but not limited to (i) any lessee, sublessee or licensee under the Current Agreements, (ii) communication service providers or fiber-optic owners or operators, (iii) the affiliates, subsidiaries, parents and successors of Grantee, and (iv) holders of security interests (collectively, including successors and assigns, "**Customers**"). Grantee and its Customers shall have the right to enter and access the Easement at any time, twenty-four (24) hours a day, seven (7) days a week.

17. **Condemnation.** In the event of any condemnation of the Easement in whole or in part, Grantee shall be entitled to file claims against the condemning authority for, and to receive, the value of the portion of the Property so taken on which the Easement is located, business dislocation expenses and any other award or compensation to which Grantee may be legally entitled.

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18. **Notices.** All notices hereunder shall be in writing and shall be given by (i) established express delivery service which maintains delivery records, (ii) hand delivery, or (iii) certified or registered mail, postage prepaid, return receipt requested. Notices are effective upon receipt, or upon attempted delivery if delivery is refused or if delivery is impossible because of failure to provide reasonable means for accomplishing delivery. The notices shall be sent to the to the addresses of Grantor and Grantee as set forth on the signature pages. Either Party may change its notice address by providing notice as set forth herein.

19. **Miscellaneous.**

(a) This Agreement, including all exhibits attached hereto, constitutes the entire agreement and understanding of both Parties with respect to the subject matter of this Agreement, and supersedes all offers, negotiations and any other written or verbal agreements, and any amendments to this Agreement must be in writing and executed by both Parties;

(b) this Agreement is governed by the laws of the state in which the Property is located. The parties agree that the venue for any litigation regarding this Easement shall be Weld County, State of Colorado.

(c) in the event that either Party fails to pay when due any taxes, loans, judgments or payments attributable to or encumbering the Property, Easement or this Agreement, the other Party shall have the right, but not the obligation, to pay such sums on behalf of the non-paying Party, and the non-paying Party shall thereafter reimburse the paying Party for the full amount of such sums paid within five (5) business days of the non-paying Party's receipt of an invoice from the paying Party, or at the paying Party's option the paying Party may offset such amount, plus reasonable interest thereon, against any sums due from the paying Party to the non-paying Party;

(d) if any term of this Agreement is found to be void, invalid or unenforceable by a court of competent jurisdiction, such provision shall be deemed modified to the minimum extent necessary to be operative, valid and enforceable to most closely reflect the intent of the Parties as expressed herein, or if such modification is not practicable, such provision shall be deemed deleted from this Agreement, and the other provisions of this Agreement shall remain in full force and effect;

(e) the Parties shall perform, execute and/or deliver promptly any and all such further acts and documents as may be reasonably required to consummate and continue to effectuate the transaction contemplated in this Agreement, including recordation of this Agreement and acquisition of title insurance on the Easement;

(f) the section headings of this Agreement have been inserted for convenience of reference only, and shall in no way modify or restrict the terms of this Agreement;

(g) this Agreement has been negotiated at arm's-length, and in the event of any ambiguity in any of the terms and provisions, this Agreement shall be interpreted in accordance with the intent of the Parties and shall not be interpreted against or in favor of either Grantor or Grantee;

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(h) each Party acknowledges that neither Party has provided any legal or tax advice to the other regarding the transaction contemplated in this Agreement or in connection with the execution of this Agreement or any ancillary documents, and each Party has had the full opportunity to avail itself of legal and financial representation;

(i) if any Party files an action for the enforcement or breach of this Agreement, the substantially prevailing Party shall be entitled to recover its reasonable attorneys' fees and court costs;

(j) this Agreement may not be amended or modified except by a written instrument signed by each of the parties hereto

(k) any Party, at its own expense, may record this Agreement upon the full execution hereof; and

(l) this Agreement may be executed in any number of counterparts, each of which shall, when executed, be deemed to be an original and all of which shall be deemed to be one and the same instrument.

[Signatures to immediately follow.]

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IN WITNESS WHEREOF, and intending to be legally bound, Grantor and Grantee have executed this Agreement.

GRANTOR:

AGAVE VENTURES LLC,
a Wyoming limited liability company

Printed Name: Emil Tsaturov
Title: Manager

7036 Via Agave
San Diego, CA 92130

STATE OF CALIFORNIA)
) SS:
COUNTY OF _____)

On this _____ day of _____, 2024, before me, a Notary Public, the undersigned officer, personally appeared Emil Tsaturov, who acknowledged himself/herself to be the Manager of Agave Ventures LLC, a Wyoming limited liability company, and that he/she, as such officer, being authorized to do so, executed the foregoing instrument for the purposes therein contained by signing his/her name on behalf of said limited liability company by himself/herself as such officer.

IN WITNESS WHEREOF, I hereunto set my hand and official seal.

(See attached CA notary acknowledgment)

Notary Public
My Commission Expires:

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CALIFORNIA ACKNOWLEDGMENT **CIVIL CODE § 1189**

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California
County of San Diego

On Dec 26, 2024 before me, Lauren Fanucchi, notary public,
Date *Here Insert Name and Title of the Officer*

personally appeared Emil Alexander Tsaturo
Name(s) of Signer(s)

who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

LAUREN FANUCCHI
Notary Public - California
San Diego County
Commission # 2458921
My Comm. Expires Sep 9, 2027

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature
Place Notary Seal and/or Stamp Above *Signature of Notary Public*

OPTIONAL

Completing this information can deter alteration of the document or fraudulent reattachment of this form to an unintended document.

Description of Attached Document
Title or Type of Document: Easement Agreement
Document Date: Number of Pages:
Signer(s) Other Than Named Above:

Capacity(ies) Claimed by Signer(s)

Signer's Name:	Signer's Name:
☐ Corporate Officer – Title(s):	☐ Corporate Officer – Title(s):
☐ Partner – ☐ Limited ☐ General	☐ Partner – ☐ Limited ☐ General
☐ Individual ☐ Attorney in Fact	☐ Individual ☐ Attorney in Fact
☐ Trustee ☐ Guardian or Conservator	☐ Trustee ☐ Guardian or Conservator
☐ Other:	☐ Other:
Signer is Representing:	Signer is Representing:

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GRANTEE:

AGAVE VENTURES GROUP LLC,
a California limited liability company

Printed Name: Emil Tsaturov
Title: Manager

13310 Via Fortezza #1
San Diego, CA 92129

STATE OF CALIFORNIA)
) SS:
COUNTY OF SAN DIEGO)

On this _____ day of _____, 2024, before me, a Notary Public, the undersigned officer, personally appeared Emil Tsaturov, who acknowledged himself to be the Manager of AGAVE VENTURES GROUP LLC, a California limited liability company, and that he, as such officer, being authorized to do so, executed the foregoing instrument for the purposes therein contained by signing his name on behalf of said limited liability company by himself as such officer.

IN WITNESS WHEREOF, I hereunto set my hand and official seal.

(See attached CA notary acknowledgment)

Notary Public
My Commission Expires:

UNOFFICIAL COPY

UNOFFICIAL COPY

CALIFORNIA ACKNOWLEDGMENT **CIVIL CODE § 1189**

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California
County of San Diego

On Dec 26, 2024 (Date), before me, Lauren Fanucchi, notary public (Here Insert Name and Title of the Officer),

personally appeared Emil Alexander Tsaturov (Name(s) of Signer(s)),

who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

LAUREN FANUCCHI
Notary Public - California
San Diego County
Commission # 2458921
My Comm. Expires Sep 9, 2027

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature _____
Signature of Notary Public

Place Notary Seal and/or Stamp Above

OPTIONAL

Completing this information can deter alteration of the document or fraudulent reattachment of this form to an unintended document.

Description of Attached Document

Title or Type of Document: easement agreement

Document Date: _____ Number of Pages: _____

Signer(s) Other Than Named Above: _____

Capacity(ies) Claimed by Signer(s)

Signer's Name:	Signer's Name:
☐ Corporate Officer – Title(s):	☐ Corporate Officer – Title(s):
☐ Partner – ☐ Limited ☐ General	☐ Partner – ☐ Limited ☐ General
☐ Individual ☐ Attorney in Fact	☐ Individual ☐ Attorney in Fact
☐ Trustee ☐ Guardian or Conservator	☐ Trustee ☐ Guardian or Conservator
☐ Other:	☐ Other:
Signer is Representing:	Signer is Representing:

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Exhibit A

Property

Lot 3B, Fox Run Business Park, Replat B, City of Greeley, County of Weld, State of Colorado.

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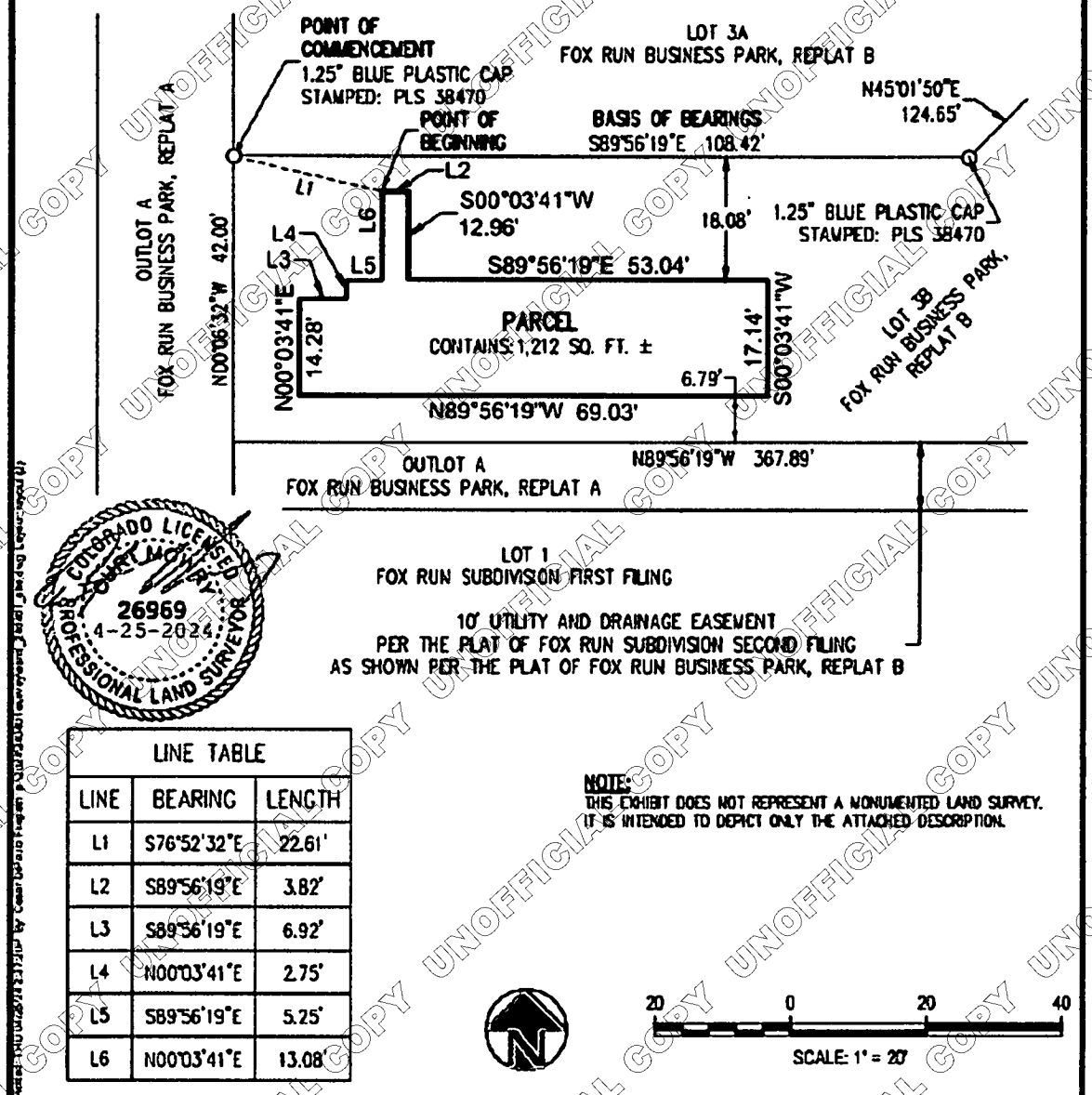
01/03/2025 10:14 AM R Fee:$83.00
Carly Koppes, Clerk and Recorder, Weld County , CO

Exhibit B

Exclusive Easement Area

ALLO FOOTPRINT

SITUATED IN THE EAST 1/2 OF THE SOUTHEAST 1/4 OF SECTION 9, TOWNSHIP 5 NORTH, RANGE 66 WEST OF THE 6TH P.M., CITY OF GREELEY, COUNTY OF WELD, STATE OF COLORADO



LINE TABLE		
LINE	BEARING	LENGTH
L1	S76°52'32"E	22.61'
L2	S89°56'19"E	3.82'
L3	S89°56'19"E	6.92'
L4	N00°03'41"E	2.75'
L5	S89°56'19"E	5.25'
L6	N00°03'41"E	13.08'

NOTE:
THIS EXHIBIT DOES NOT REPRESENT A MONUMENTED LAND SURVEY. IT IS INTENDED TO DEPICT ONLY THE ATTACHED DESCRIPTION.

HKS HARRIS KOCHER SMITH

ISSUE DATE: 04-25-2024	CHECKED BY: CAM
	DRAWN BY: CD
DATE	REVISION COMMENTS

ILLUSTRATION

1847 61ST AVE
GREELEY, CO

PROJECT #: 240401
SHEET NUMBER
2
2 OF 2

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Exhibit C

Exclusive Easement Legal Description

COMMENCING AT A NORTHWEST CORNER OF SAID LOT 3B;
THENCE SOUTH 76°52'32" EAST, A DISTANCE OF 22.61 FEET TO THE POINT OF BEGINNING;
THENCE SOUTH 89°56'19" EAST, A DISTANCE OF 3.82 FEET;
THENCE SOUTH 00°03'41" WEST, A DISTANCE OF 12.96 FEET;
THENCE SOUTH 89°56'19" EAST, A DISTANCE OF 53.04 FEET;
THENCE SOUTH 00°03'41" WEST, A DISTANCE OF 17.14 FEET;
THENCE NORTH 89°56'19" WEST, A DISTANCE OF 69.03 FEET;
THENCE NORTH 00°03'41" EAST, A DISTANCE OF 14.28 FEET;
THENCE SOUTH 89°56'19" EAST, A DISTANCE OF 6.92 FEET;
THENCE NORTH 00°03'41" EAST, A DISTANCE OF 2.75 FEET;
THENCE SOUTH 89°56'19" EAST, A DISTANCE OF 5.25 FEET;
THENCE NORTH 00°03'41" EAST, A DISTANCE OF 13.08 FEET TO THE POINT OF BEGINNING.

SAID PARCEL CONTAINS 1,212 SQUARE FEET, MORE OR LESS.

Exhibit D

Access Easement

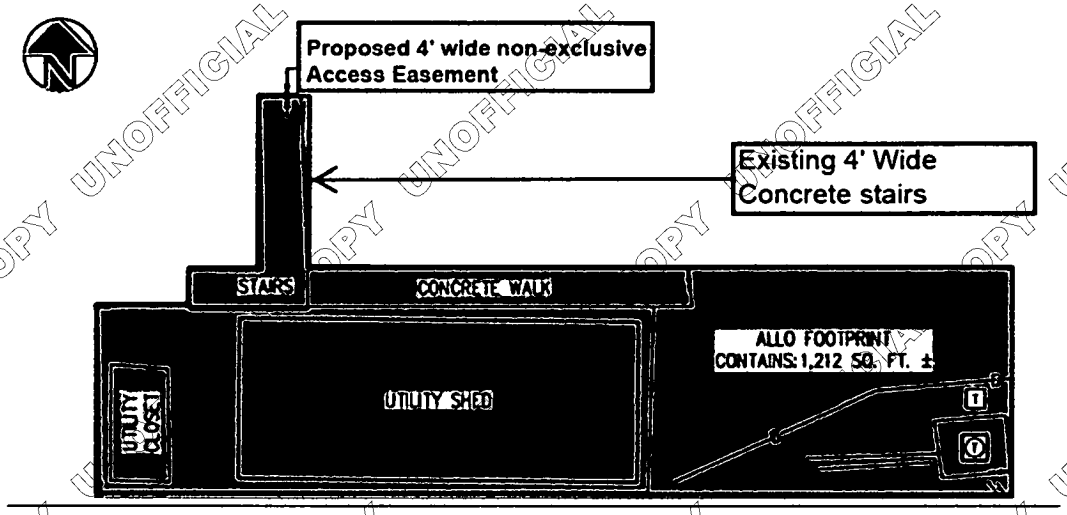

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Exhibit E

Utility Easement

A FIVE (5.00) FOOT STRIP OF LAND BEING 2.50 FEET ON EACH SIDE OF THE CENTERLINE BEING DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT 3B;
THENCE SOUTH 89°56'19" EAST ALONG THE SOUTH LINE OF SAID LOT 3B, A DISTANCE OF 11.62 FEET TO THE **POINT OF BEGINNING**;
THENCE NORTH 05°21'34" EAST, A DISTANCE OF 6.82 FEET TO A POINT ON THE SOUTH LINE OF ALLO FOOTPRINT DESCRIBED ON ALLO FOOTPRINT EXHIBIT, POINT BEING THE **POINT OF TERMINUS**.

AND

A FIVE (5.00) FOOT STRIP OF LAND BEING 2.50 FEET ON EACH SIDE OF THE CENTERLINE BEING DESCRIBED AS FOLLOWS:

COMMENCING AT A NORTHEAST CORNER OF ALLO FOOTPRINT DESCRIBED ON ALLO FOOTPRINT EXHIBIT;
THENCE SOUTH 00°03'41" WEST ALONG THE EAST LINE OF SAID ALLO FOOTPRINT, A DISTANCE OF 8.30 FEET TO THE **POINT OF BEGINNING**;
THENCE NORTH 84°52'04" EAST, A DISTANCE OF 27.84 FEET;
THENCE SOUTH 86°35'05" EAST, A DISTANCE OF 41.58 FEET;
THENCE SOUTH 31°11'00" EAST, A DISTANCE OF 3.94 FEET TO A POINT ON THE WEST LINE OF 10 FOOT UTILITY EASEMENT PER THE PLAT OF FOX RUN BUSINESS PARK AS SHOWN PER THE PLAT OF FOX RUN BUSINESS PARK, REPLAT B, POINT BEING THE **POINT OF TERMINUS**.

AND

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT 3B;
THENCE NORTH 89°34'18" EAST, A DISTANCE OF 79.47 FEET TO THE **POINT OF BEGINNING**;
THENCE NORTH 38°25'19" WEST, A DISTANCE OF 7.80 FEET TO A POINT ON THE SOUTH LINE OF ALLO FOOTPRINT DESCRIBED ON ALLO FOOTPRINT EXHIBIT;
THENCE ALONG THE BOUNDARY OF SAID ALLO FOOTPRINT THE FOLLOWING TWO (2) COURSES:
1) SOUTH 89°56'19" EAST ALONG SAID SOUTH LINE, A DISTANCE OF 4.15 FEET;
2) NORTH 00°03'41" EAST, A DISTANCE OF 3.80 FEET;
THENCE SOUTH 33°29'10" EAST, A DISTANCE OF 3.53 FEET;
THENCE SOUTH 77°26'29" EAST, A DISTANCE OF 7.77 FEET;
THENCE NORTH 85°33'46" EAST, A DISTANCE OF 57.22 FEET;
THENCE NORTH 74°54'44" EAST, A DISTANCE OF 11.02 FEET;
THENCE SOUTH 86°31'20" EAST, A DISTANCE OF 28.53 FEET;
THENCE SOUTH 85°45'40" EAST, A DISTANCE OF 44.33 FEET;
THENCE SOUTH 89°02'23" EAST, A DISTANCE OF 55.65 FEET;
THENCE SOUTH 89°21'33" EAST, A DISTANCE OF 64.65 FEET;
THENCE SOUTH 60°57'45" EAST, A DISTANCE OF 5.18 FEET TO A POINT ON THE WEST LINE OF PERPETUAL NON-EXCLUSIVE TELECOMMUNICATIONS EASEMENT DEDICATED PER REC. NO. 3088264, AS SHOWN PER THE PLAT OF FOX RUN BUSINESS PARK, REPLAT B;
THENCE SOUTH 10°55'45" WEST ALONG SAID WEST LINE, A DISTANCE OF 4.45 FEET TO A POINT ON THE SOUTH LINE OF SAID LOT 3B;
THENCE NORTH 89°56'19" WEST ALONG SAID SOUTH LINE, A DISTANCE OF 12.14 FEET;
THENCE NORTH 00°22'08" EAST, A DISTANCE OF 1.36 FEET;
THENCE NORTH 89°37'52" WEST, A DISTANCE OF 76.86 FEET;
THENCE NORTH 87°20'23" WEST, A DISTANCE OF 54.41 FEET;
THENCE SOUTH 89°45'52" WEST, A DISTANCE OF 63.84 FEET;
THENCE SOUTH 87°15'49" WEST, A DISTANCE OF 66.08 FEET TO THE **POINT OF BEGINNING**.

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